

Opposition do not constitute evidence. “Matters set forth in points and authorities are not evidence.” (*Alki Partners, LP v. DB Fund Services, LLC* (2016) 4 Cal.App.5th 574, 590.) “Evidence appears elsewhere – in deposition testimony, discovery responses, and declarations.” (*Ibid.*; see also *In re Marriage of Duris & Urbany* (2011) 193 Cal.App.4th 510, 515.)

Defendant presents no evidence that shows how a delay in the case might impact him, nor indicating if or how drastic an increase in litigation expenses will occur if leave to amend is granted. While it is true that granting leave to amend will require additional responsive pleadings, and possibly more discovery and motion practice – that alone is insufficient to deny a party an opportunity to amend. “Where no prejudice is shown to the adverse party, the liberal rule of allowance prevails.” (*Higgins v. DelFaro* (1981) 123 Cal.App.3d 559, 564.) A party opposing amendment must demonstrate that permitting the amendment will cause it to suffer prejudice.

Conclusion

Based on the above, Plaintiff’s motion for leave to file the Second Amended Complaint is **granted**. Plaintiff shall file the Second Amended Complaint within 10 days of notice of entry of the order on this motion.

6. 9:00 AM CASE NUMBER: C25-01475
CASE NAME: AUDREY WELSCH VS. HAYDEN FLOREZ
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL FOR AUDREY WELSCH**
FILED BY:
TENTATIVE RULING:

The Court was awaiting further information, which has not yet been filed. Parties to appear.

7. 9:00 AM CASE NUMBER: C25-02864
CASE NAME: KEVIN SUAREZ VS. PBF ENERGY WESTERN REGION LLC
***HEARING ON MOTION IN RE: STAY PROCEEDINGS**
FILED BY: PBF ENERGY WESTERN REGION LLC
TENTATIVE RULING:

The Motion was withdrawn on August 25, 2026. The Court confirms the further case management conference on March 2, 2027, at 8:30 a.m. in Department 10.

8. 9:00 AM CASE NUMBER: C25-03006
CASE NAME: MICHAEL KITTERMAN VS. DR. CHRIS WANG, MD
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: JOHN MUIR HEALTH
TENTATIVE RULING:

Before the Court is Defendant John Muir Health’s Demurrer. Kitterman has filed no opposition. Indeed, it does not appear that Kitterman has participated in his case for several months. The Court is moderately concerned that, given the facts underlying this action, Mr. Kitterman may have passed